



File No.: EXP202400527

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on November 30, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right to Erasure against CREDIRECT PRÉSTAMOS, S.L. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that their personal data is registered in common credit information systems in relation to a debt with the respondent that they are unaware of, and therefore requests information regarding the debt, as well as the erasure of their data, without receiving a response within the established timeframe.

They provide a copy of the letter sent to the respondent on 20/09/2023, in which they warn that they have not received notification regarding the entry of their data in the Asnef file due to a debt of 667.86 euros and request information on the basis of such claim and how the principal of the debt, interest, and applied fees were generated, to see if they conform to the signed contract. They add that in said contract they were not informed about the possibility of their data being recorded in a credit information system. Finally, they request the erasure of their personal data from the aforementioned file.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

In response to this transfer of the complaint, the respondent submitted a letter dated 22/02/2024, providing proof of payment of the principal amount of the credit granted to the complainant, General and Specific Conditions of the Loan, and the chronological sequence of actions that led to the debt in question, as well as payment requests warning that non-payment would result in the registration of their personal data in the Asnef file. Based on this, they indicate that it is not appropriate to deregister the complainant.

Additionally, they attach a copy of the response sent to the complainant by the Legal Department to inform about microcredits, including the contract and a payment agreement for the principal without interest.

Subsequently, on 06/03/2024, they sent a new letter informing that they have proceeded to erase the complainant's data registered in the Asnef file, due to the amortization of the outstanding loan that the complainant had with the respondent (they attach a screenshot to prove that there are no personal data associated with the complainant's ID).

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on February 29, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any allegations they deemed appropriate within a period of ten working days. By means of a letter received on 15/04/2024, the respondent reiterates what was indicated in their letter of 06/03/2024:

"We inform the Agency that the request made by the complainant has been attended to by deregistering their personal data from the ASNEF file within the stipulated deadlines. The purpose of this communication is to confirm that this action has been carried out due to the amortization of the outstanding loan that the complainant had with the entity.

As proof that my client has addressed the initiating complaint of this file, we attach to this communication the response provided to the complainant as Document No. 1, through which they are

clearly and accessibly informed of the point raised in the previous allegation, with nothing further to claim between both parties.”

And they provide a copy of the communication sent to the complainant on the same date of 15/04/2024, informing them that they have proceeded to address their request for the erasure of personal data.

FOURTH: Having examined the letter submitted by the respondent, it is forwarded to the complainant, so that, within a period of ten working days, they may formulate any allegations they consider appropriate, without formulating allegations within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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control authority and according to the provisions of articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure. Furthermore, article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and to provide evidence of having given the complainant the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on February 29, 2024, for the purposes provided in articles 64.1 and 65 of the LOPDGDD, the complaint presented was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in articles 15 to 22 of the GDPR, regulated in article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for the Protection of Data a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

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b) the data subject withdraws the consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;

c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been processed unlawfully;

e) the personal data must be erased for compliance with a legal obligation established in Union or Member State law applicable to the data controller;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the personal data have been made public and the data controller is obliged, under the provisions of paragraph 1, to erase such data, taking into account the available technology and the cost of implementation, the data controller shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replicas of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

In the case analyzed here, the respondent has justified the debt referred to in the claim, the payment demands made, and the information provided to the claimant warning them about the possibility of registering their data in the Asnef file in case of non-payment.

It has also indicated that it offered the claimant a payment agreement solely for the principal, without interest, and that the loan was ultimately repaid.

Regarding the right to erasure exercised by the claimant, it is recorded in the proceedings that the period established in the aforementioned regulations elapsed without the request receiving the legally required response, and that this response was

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submitted during the processing of the claim that has led to these proceedings, informing that the data was deleted as a result of the loan amortization (the respondent has provided documentation proving the communication sent to the interested party in accordance with the right).

The aforementioned regulations do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the responsible parties must issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

Thus, since the response to the right was sent during the processing of the claim that gives rise to the present procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, such response occurs, therefore, once the established deadline has been exceeded. In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the present procedure aims to ensure that the guarantees and rights of the affected parties are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present claim on formal grounds due to the response being issued late, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds, the claim made by A.A.A., against CREDIRECT PRÉSTAMOS, S.L. However, the issuance of a new certification by the respondent is not warranted, as the response was issued late, without requiring the responsible party to carry out additional actions.

SECOND: TO NOTIFY this resolution to A.A.A. and to CREDIRECT PRÉSTAMOS, S.L.

In accordance with the provisions of Article 50 of the LOPDGD, this Resolution will be made public

once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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